

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 2914 of 2006

In the matter of:

An Application under section 115(1) of the Code of Civil Procedure, 1908

And

In the matter of:

Present
Mr. Justice Mamnoon Rahman

Nur Mohammad and others.

...Petitioners.

-Vs-

Munshi Meah and others.

...Opposite parties.

Mr. Tushar Banik, Adv.

...For the petitioners.

None appears

...For the opposite party.

Heard & Judgment on: **The 7th December, 2023**

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite party Nos. 1-59 only at the risk of the petitioner to show cause as to why the impugned judgment and order dated 24.05.2006 passed by the learned Additional District Judge, In-Charge, 6th Court, Chittagong in Other Appeal No. 236 of 2005 rejecting the application for addition of parties, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

None appeared on behalf of the opposite party to oppose the rule.

I have heard the learned Advocate for petitioners. Perused the impugned judgment and order, revisional application and grounds

taken thereon as well as necessary papers and documents annexed herewith.

On perusal of the same, it transpires that the appeal is pending before the lower appellate court being Other Class Appeal No. 236 of 2005 wherein the present petitioners filed an application for addition of parties as the legal heirs of the deceased Rowshan Ali who was party to the suit and appeal. It further transpires that the lower appellate court, however, rejected the same on the ground that since one of the son is contesting in a proceeding the other heirs are not required to be added which is totally a misconceived contention. In this context, I am of the view that after the death of a party all the heirs have the right to be added in the proceeding.

Accordingly, the instant rule is made absolute. The impugned judgment and order passed by the court below is hereby set aside and the application for addition of party is allowed. However, the lower appellate court is directed to hear and dispose of the appeal being Other Class Appeal No. 236 of 2005 strictly on merit by applying its independent and judicial mind within 6(six) months from the date of receipt of the instant order without fail.

Communicate the judgment and order to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman,J:)